

25NWCV00241 25NWCV00241

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C07%2F17%2F2026

Source SHA-256: 881399e6104e13d3438814628aca5993d2649d2bf6bf64c86b7857b323a88b77

Case Number: 25NWCV00241 Hearing Date: July 17, 2026 Dept: P

KEVIN DEON WOODS v. RANISHA D. GRAY, ET
AL.

CASE NO.: 25NWCV00241

HEARING: 07/17/2026 @ 9:30 AM

#17

TENTATIVE ORDER

I.

Plaintiff Kevin Deon Woods's motion for
leave to file a first amended complaint is GRANTED.

II.

Plaintiff is ORDERED to file and serve
the proposed first amended complaint attached to the moving papers within 5
days of this Order.

Moving party to give notice.

Plaintiff Kevin Deon Woods (Plaintiff) moves for leave to
file a first amended complaint (FAC).

Background

On January 21, 2025, Plaintiff filed this action against

Defendants and Cross-Complainants Ranisha D. Gray (Ranisha), Shirley A. Allen (Allen), Demetrius Gray (Demetrius),[1] and Does 1 to 50 (collectively, Defendants). The complaint alleges the following: In 2017 or 2018, Plaintiff and Artricia Woods (Artricia or Decedent) created a business operating as a dba known as "Affinity Real Estate and Mortgage Services" (Affinity) and on December 6, 2018, they created Affinity Real Estate & Mortgage Services, LLC (Affinity LLC). (Complaint, ¶¶ 12-13.) On February 29, 2019, Affinity Real Estate and Mortgage Services, Inc. (Affinity Inc.) was created. (Complaint, ¶ 19.) Plaintiff and Artricia were the sole members of Affinity LLC and equal owners of Affinity Inc. from the time of their creation until the time of Artricia's death and each held their ownership in both as community property during Artricia's lifetime. (Complaint, ¶¶ 15, 19.) Upon Artricia's death on October 23, 2020, Plaintiff became the sole owner of Affinity LLC and Affinity Inc. (Complaint, ¶¶ 15, 21.) On March 3, 2022, the Los Angeles Superior Court issued an order confirming that Plaintiff owns 100% of a PayPal Account which was opened by Artricia and in which income and receipts generated by the Affinity LLC were collected through, deposited, and thereafter withdrawn to accounts for the Affinity LLC and/or Affinity, Inc. (Complaint, ¶¶ 24-27.)

The complaint alleges that on August 6, 2024, when attempting to access the PayPal Account, the password was changed and Plaintiff believes that Affinity LLC employee Ranisha, with assistance by Defendants Allen and Demetrius, transferred most of the balance of the PayPal Account into an account owned and/or controlled by themselves. (Complaint, ¶¶ 30-34.) Further, the complaint alleges that Defendants transferred the Affinity LLC payroll to a service that Plaintiff cannot access. (Complaint, ¶ 34.) The complaint asserts six causes of action: (1) Conversion, (2) Violation of the Uniform Trade Secrets Act, (3) Violation of Penal Code § 496, (4) Tortious Interference with Economic Advantage, (5) Violation of Business & Professions Code § 17200, and (6) Declaratory Relief.

On April 9, 2025, Cross-Complainants filed a cross-complaint (XC). On the same date, Cross-Complainants filed a Notice of Lis Pendens as to the real property known as 9835 Crestbrook Avenue, Bellflower, California 90706 with the Tax Identification Number APN: 6281-020-029 (Bellflower Property).

On June 11, 2025, Cross-Complainants filed a first amended cross-complaint (FAXC). The FAXC alleges the following: Artricia was the sole owner and proprietor of Affinity and Cross-Complainants allege that Affinity

constitutes Artricia's separate property and was never transmuted into community property. (FAXC, ¶ 11.) Plaintiff and Artricia acquired the Subject Property after their marriage but Artricia removed Plaintiff from the grant deed and re-financed the property herself due to Plaintiff's credit history. (FAXC, ¶ 12.) Between 2018 and 2020, Artricia explicitly expressed her testamentary intent to multiple people for Affinity and the Subject Property to pass solely to Ranisha and that this intent is contained in a holographic will in the bottom drawer of her desk. (FAXC, ¶¶ 14-16.) The FAXC alleges Plaintiff falsely claimed that Artricia died intestate in his Spousal Property Petition in Los Angeles Superior Court (Case No. 20STPB10011). (FAXC, ¶ 23.) On September 20, 2021, Woods filed a second fraudulent Spousal Property Petition (Case No. 21STPB09167), asserting intestacy and claiming Affinity as community property. (FAXC, ¶ 26.) Cross-Complainants allege that Plaintiff misappropriated Artricia's funds. (FAXC, ¶¶ 29-31.)

The FAXC asserts eleven causes of action: (1) Fraud and Deceit (Intentional Misrepresentation and Concealment), (2) Breach of Fiduciary Duty, (3) Tortious Interference with Prospective Economic Advantage, (4) Conversion, (5) Quiet Title (Real Property and Business), (6) Quasi-Contract / Restitution Based on Unjust Enrichment (pled in the alternative), (7) Constructive Trust, (8) Accounting, (9) Intentional Infliction of Emotional Distress, (10) Civil Conspiracy, and (11) Action to Set Aside Fraudulent Judgments/Orders.

Legal Standard

"The court may...in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473 subd. (a).)

California Rules of Court, rule 3.1324(a) provides: "A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the

previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

California Rules of Court rule 3.1324(b) requires a separate declaration accompany the motion. The separate declaration must include: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court of California (1959) 172 Cal.App.2d 527, 530.)

Discussion

Plaintiff moves for leave to file a FAC against Defendants. This motion is unopposed.

In compliance with California Rules of Court, rule 3.1324(a), Plaintiff submits the declaration of Plaintiff's counsel. Plaintiff also submits a clean and red-lined copy of the proposed FAC. (McManus Decl., ¶¶ 3-4, Exhs. A, B.)

Plaintiff argues the proposed FAC adds allegations regarding defendants FAXC and Defendants' filing of Notices of Lis Pendens as to two of Plaintiff's properties. The proposed FAC additionally adds a sixth cause of action for slander of title and a seventh cause of action for quiet title.

In compliance with California Rules of Court, rule 3.1324(b), Plaintiff's counsel states that these amendments became necessary after Defendants filed a FAXC alleging claims regarding the Bellflower Property while also filing a Notice of Lis Pendens regarding a property located at 40116

Highland Avenue, Big Bear Lake, California 92315 (Big Bear Property). (McManus Decl., ¶¶ 5-6.) Plaintiff's counsel states that after it became apparent that Defendants asserted claims concerning the Bellflower Property but not the Big Bear Property, yet filed a Notice of Lis Pendens as to the Big Bear Property, Plaintiff sought to add the slander of title claim regarding the Big Bear Property. (McManus Decl., ¶¶ 8, 10-12.) Plaintiff's counsel states the quiet title claim is necessary because Defendants' pleadings challenge Plaintiff's ownership rights regarding the Bellflower Property. (McManus Decl., ¶ 13.)

Plaintiff's counsel further states "[t]he proposed amendment is necessary and proper to protect Plaintiff's ownership interests in those properties and to permit adjudication of the claims that became ripe after Defendants filed the lis pendens." (McManus Decl., ¶ 16.)

Here, the Court finds Plaintiff complies with the procedural requirements for an order granting leave. Plaintiff further argues that any prejudice to Defendants is minimal as these claims arise out of the same facts, witnesses, documents, and properties that are already at issue. Moreover, Plaintiff argues that no depositions have taken place yet and this amendment will not impact the trial date. The Court agrees that any prejudice to Defendants is minimal and additionally notes that Defendants do not oppose this motion to raise any arguments regarding prejudice.

Accordingly, Plaintiff's motion for leave to file a first amended complaint is GRANTED. Plaintiff is ORDERED to file and serve the proposed first amended complaint attached to the moving papers within 5 days of this Order.

[1] The

Court uses first names because there are multiple parties with the same last name, not for any recognition or familiarity purposes.